

Multiple Choice (10 marks)

1. Can countries rely on their domestic law as an excuse to violate their obligations under international law?
 - (a) Domestic law always prevails over international law
 - (b) Only customary international law prevails over domestic law
 - (c) Obligations under international law prevail over domestic law
 - (d) Constitutional obligations always prevail over obligations under international law
2. Which statement best describes the nature and function of Kelsen's Grundnorm?
 - (a) The ultimate source of a legal system's morality.
 - (b) The rule that distinguishes norms from habits of obedience.
 - (c) The constitution of a state.
 - (d) A presupposition that facilitates our understanding of the legal system.
3. Is piracy under international (jure gentium) law subject to universal jurisdiction?
 - (a) Piracy jure gentium is subject to flag State jurisdiction
 - (b) Piracy jure gentium is subject to universal jurisdiction
 - (c) Piracy jure gentium is subject to port State jurisdiction
 - (d) Piracy jure gentium is subject to nationality-based jurisdiction
4. Posner denies the autonomy of law on two grounds. Name one of them.
 - (a) He denies that law develops independently of social and economic forces.
 - (b) He claims that law is economically immoral.
 - (c) He rejects a positivist account of law.
 - (d) He opposes any sociological analysis of the law.
5. Who was an exponent of "natural law with a variable content"?
 - (a) John Rawls
 - (b) Stammler
 - (c) Jerome Hall
 - (d) John Finns

True / False (10 marks)

Answer True or False

6. True or False: Gemeinschaft refers to a society that lacks democratic principles, whereas Gesellschaft is inherently democratic.
7. True or False: In Hohfeld's scheme, the relationship of power and liability is considered a contradiction in jural relations.
8. True or False: Salmond defined law as a set of principles or rules recognized and applied by the State in administering justice.
9. True or False: Dworkin measures equality of resources solely by the amount of income tax paid by individuals in society.
10. True or False: The rule of recognition applies only to unitary constitutions and does not function in federal systems.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the nature of the UK Constitution, emphasizing its uncoded status and the various sources from which it is derived. Analyze the implications of this structure on governance and law.
12. Discuss the relationship between Durkheim's concepts of mechanical and organic solidarity and their respective influences on the types of law present in society.

End of Paper